

Raj Kumari @ Rajesh Kumari v. State of U.P. And 2 Others

Allahabad High Court · Division Bench · 4 November 2020 · Writ - C No. 14322 of 2020 · **Writ petition dismissed; after rejection of the Clause 6.5 representation the petitioner may, if so advised, approach the Consumer Grievance Redressal Forum and thereafter the Electricity Ombudsman; bill and demand not decided**

HEADNOTE

Where a consumer has already availed the Clause 6.5 representation to the Executive Engineer under an earlier writ direction, and that representation has been rejected, a subsequent writ seeking certiorari against the rejection and the original electricity demand, and mandamus to correct the bill, will not be entertained. Counsel for the licensee raised a preliminary objection that the Clause 6.5 remedy under the U.P. Electricity Supply Code, 2005 had been exhausted and that the remaining statutory route was the Consumer Grievance Redressal Forum and thereafter the Electricity Ombudsman. The Court accepted that objection, declined to entertain the writ, and dismissed it with liberty to take that recourse. The Court did not decide the correctness of the bill or the demand.

FACTUAL SUMMARY

Raj Kumari @ Rajesh Kumari, a consumer of Dakshinanchal Vidhut Vitran Nigam Ltd., Hamirpur, challenged a demand notice dated 4 January 2019 for Rs.1,42,998 towards electricity dues. She had earlier filed Writ-C No. 1494 of 2019, which a Division Bench disposed of on 17 January 2019 by directing her to appear before the Executive Engineer on 31 January 2019 at 11:00 a.m. with her objection or representation; the Executive Engineer was to hear and decide it in accordance with law within 15 days. The Executive Engineer rejected that representation by order dated 6 December 2019 (Letter No. 4432/Vi.Vi.Kha.Ha./court case/2019-20). In this writ she sought certiorari against that rejection and the original demand, and mandamus to correct her electricity bill. Counsel for respondent nos. 2 and 3 raised a preliminary objection that Clause 6.5 of the U.P. Electricity Supply Code, 2005 had already been availed and that the next remedy was the Consumer Grievance Redressal Forum and thereafter the Electricity Ombudsman.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Clause 6.5 representation already rejected — second writ not entertained

QUESTION

Once a Clause 6.5 representation to the Executive Engineer, made pursuant to an earlier writ direction, has been rejected, can the consumer maintain a second writ to quash that rejection and the original electricity demand?

HOLDING

No. The petitioner had already availed the Clause 6.5 remedy in pursuance of the order dated 17.1.2019 in Writ-C No. 1494 of 2019; the Executive Engineer rejected the representation by order dated 6.12.2019. Against that order the remaining remedy is the Consumer Grievance Redressal Forum and thereafter the Electricity Ombudsman. On that preliminary objection the Court was not inclined to entertain the writ and dismissed it, with liberty to take the available recourse if so advised. The bill and demand were not examined.

¶ order of 4.11.2020

FLAG Source PDF concatenates listing orders of 23.9.2020 (Manoj Misra and Shekhar Kumar Yadav, JJ.: none present for the petitioner; put up as fresh on 13.10.2020), 13.10.2020 (instructions for respondent nos. 2 and 3), 21.10.2020 and 22.10.2020 (adjournments at the petitioner's request) with this 4.11.2020 dismissal (Naheed Ara Moonis and Vivek Varma, JJ.). The disposing order is unnumbered. Prayer I recites the demand as Rs.1,42,9978; the narrative of the earlier writ recites Rs.1,42,998.

HOLDING-UNIT · UP-2005::7.10

CGRF then Electricity Ombudsman after rejection of a Clause 6.5 representation

QUESTION

After a Clause 6.5 representation is rejected, is a writ the remaining forum, or must the consumer go to the Consumer Grievance Redressal Forum and then the Electricity Ombudsman?

HOLDING

The remaining remedy against the order rejecting the Clause 6.5 representation is to approach the Consumer Grievance Redressal Forum and thereafter the Electricity Ombudsman. The writ court will not entertain a challenge to that rejection and the original demand on that ground. ¶ [order of 4.11.2020](#)

QUALIFIER

The Court named the Consumer Grievance Redressal Forum and the Electricity Ombudsman and did not cite Clause 7.10 or Section 42 of the Electricity Act, 2003. Keyed to Clause 7.10 as the Code's forum-and-Ombudsman route for billing grievances.

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill

The petitioner had already pursued a Clause 6.5 representation to the Executive Engineer, Dakshinanchal Vidhut Vitran Nigam Ltd., Hamirpur, under the 17.1.2019 writ direction; that representation was rejected on 6.12.2019. The second writ against the rejection and the 4.1.2019 demand was not entertained. ¶ [order of 4.11.2020](#)

cgrf-ombudsman-alternative-remedy

After the Clause 6.5 representation was rejected, the Court accepted the licensee's objection that the remaining remedy was the Consumer Grievance Redressal Forum and thereafter the Electricity Ombudsman, and dismissed the writ with liberty to take that recourse. ¶ [order of 4.11.2020](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND OF THE DEMAND NOTICE DATED 4.1.2019 FOR RS.1,42,998

Writ dismissed on alternative remedy; the demand was neither quashed nor affirmed. ¶ [order of 4.11.2020](#)

NOT DECIDED — VALIDITY OF THE EXECUTIVE ENGINEER'S ORDER DATED 6.12.2019 REJECTING THE CLAUSE 6.5 REPRESENTATION

Certiorari was refused only because CGRF and the Ombudsman were treated as the remaining remedy; the rejection was not examined on merits. ¶ [order of 4.11.2020](#)